

CLARITY – Pre-Contractual Information Sheet

Purpose and Scope

- 1.1 This pre-contractual information sheet (the “Document”) sets out key commercial and legal parameters applicable to a potential relationship between Clarity and a prospective partner (the “Partner”).
- 1.2 The Document is provided for evaluation purposes only and does not constitute an offer capable of acceptance or any binding commitment.
- 1.3 Any definitive arrangement shall be subject to a written agreement executed by duly authorized representatives of the parties (the “Agreement”).
- 1.4 In the event of inconsistency between this Document and the Agreement, the Agreement shall prevail.
- 1.5 Nothing herein creates any agency, partnership, or joint venture between the parties.
- 1.6 Clarity may update or withdraw this Document at any time without notice.
- 1.7 The Partner acknowledges that reliance on this Document is at its own risk.
- 1.8 Headings are for convenience only and shall not affect interpretation.

Company and Products

2.1 Clarity designs, sources, and distributes eyewear products including frames, ophthalmic lenses, sunglasses, and accessories.

2.2 Products may be subject to technical specifications, conformity assessments, and labeling requirements applicable in the relevant territory.

2.3 Where applicable, products shall comply with EU medical device and consumer product regulations.

2.4 Clarity may modify product specifications, discontinue items, or introduce new ranges at its discretion.

2.5 Product documentation, including instructions for use and certificates, may be provided upon request.

2.6 No guarantee is given as to continued availability of any specific product line.

2.7 Images, samples, and marketing materials are indicative and non-binding.

2.8 The Partner shall verify suitability of products for its intended market.

Distribution Model

- 3.1 Clarity typically appoints Partners on a non-exclusive basis unless expressly agreed otherwise in writing.
- 3.2 The Partner shall purchase products for resale in its own name and on its own account.
- 3.3 The Partner shall not represent itself as an agent of Clarity.
- 3.4 Sub-distribution is prohibited unless expressly authorized.
- 3.5 The Partner shall maintain adequate storage conditions consistent with product requirements.
- 3.6 The Partner shall ensure that sales personnel are appropriately trained.
- 3.7 The Partner shall comply with all applicable laws in the Territory.
- 3.8 Clarity reserves the right to appoint additional partners in the Territory.

Confidentiality

- 4.1 All information disclosed by Clarity in connection with this Document shall be treated as confidential.
- 4.2 The Partner shall not disclose such information to third parties without prior written consent.
- 4.3 Confidential information shall be used solely for evaluation purposes.
- 4.4 This obligation shall survive termination of discussions for a period of three (3) years.
- 4.5 Information in the public domain or lawfully obtained from third parties is excluded.
- 4.6 The Partner shall implement reasonable safeguards to protect confidentiality.
- 4.7 Upon request, confidential materials shall be returned or destroyed.
- 4.8 No license is granted under any intellectual property rights.

Governing Law (Indicative)

- 5.1 This Document is indicative and does not itself create legal obligations.
- 5.2 Any future Agreement may be governed by the laws of a specified jurisdiction (to be agreed).
- 5.3 Nothing herein shall be construed as a submission to jurisdiction.
- 5.4 Conflict of laws rules shall be excluded where permitted.
- 5.5 Dispute resolution mechanisms shall be defined in the Agreement.
- 5.6 Interim relief may be sought in competent courts.
- 5.7 The language of the Agreement shall be agreed by the parties.
- 5.8 Execution may occur in counterparts.